SKELTON REALTY GROUP

**RESIDENTIAL LEASE AGREEMENT**

Skelton Realty Group · Licensed Real Estate Brokerage

# STATE OF GEORGIA RESIDENTIAL LEASE AGREEMENT

Standard Multi-Clause Residential Real Estate Contract Pursuant to Title 44, Chapter 7 of the Official Code of Georgia Annotated (O.C.G.A.)

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| PREMISES ADDRESS | **7259 Brittany Way, Douglasville, GA 30134** (Douglas County) |
| LEGAL DESCRIPTION & APN | HSE/LOT #223, HUNTERS RIDGE S/D, U-5 · Parcel ID (APN): **0645-18-2- -00062** |
| OWNER OF RECORD (LANDLORD) | **2018-3 IH BORROWER LP** (1717 Main St, Dallas, TX 75201) |
| AUTHORIZED MANAGING AGENT / BROKER | **Skelton Realty Group** (213 Bob Ln, Virginia Beach, VA 23454 · Tel: (800) 555-0198) |
| TENANT(S) | Approved Resident(s) as named and executed on the signature page of this Agreement |
| MONTHLY RENTAL RATE | **$1,476 per month** (Due on or before the first day of each calendar month) |
| SECURITY DEPOSIT | **$1,476.00** (Held in an approved escrow bank account pursuant to O.C.G.A. § 44-7-31) |
| INITIAL LEASE TERM | Twelve (12) Calendar Months (Commencement and Expiration dates defined in Clause 2) |

## 1. DEMISE OF PREMISES

Landlord, through its authorized managing broker Skelton Realty Group, hereby leases to Tenant, and Tenant hereby leases from Landlord, the single-family residential dwelling located at **7259 Brittany Way, Douglasville, GA 30134** ("Premises"), together with all fixtures, appurtenances, private driveway, 2-car attached garage, and ground improvements situated in Douglas County, Georgia.

## 2. TERM OF LEASE

The initial term of this Lease shall commence at 12:01 A.M. on the Commencement Date and shall terminate at 11:59 P.M. on the Expiration Date, unless earlier terminated or extended pursuant to the provisions of this Agreement. Any holdover by Tenant without written agreement shall create a tenancy-at-sufferance subject to double rent under Georgia law.

## 3. MONTHLY RENT & PAYMENT SCHEDULE

Tenant agrees to pay Landlord total monthly rent in the amount of **$1,476**, payable in advance on or before the first (1st) day of each calendar month during the lease term. Rent shall be submitted electronically through the Skelton Realty Group Resident Portal or at such other authorized place as Landlord designates in writing.

## 4. LATE FEE & DISHONORED PAYMENTS

Rent received after 11:59 P.M. on the fifth (5th) day of the calendar month is delinquent and subject to an immediate late administrative fee equal to **$75.00** plus **$10.00** per day thereafter until paid in full. Any check or electronic payment returned for insufficient funds or stop-payment shall incur a returned check fee of **$35.00** or the statutory maximum permitted under O.C.G.A. § 13-6-15.

### 5. SECURITY DEPOSIT & ESCROW BANKING

Prior to occupancy, Tenant shall deposit with Landlord the sum of **$1,476.00** as security for the faithful performance of all covenants herein. Landlord shall deposit and maintain said funds in a dedicated escrow account in an FDIC-insured banking institution in accordance with O.C.G.A. § 44-7-31. The deposit shall not be utilized by Tenant as rent. Within three (3) business days of lease expiration, an inspection shall be conducted and an itemized statement of any deductions delivered pursuant to O.C.G.A. § 44-7-33.

### 6. CONDITION OF PREMISES & MOVE-IN INSPECTION

Prior to the tender of the security deposit or possession, Landlord has provided Tenant with an itemized Comprehensive Move-In Inspection Form detailing existing defects, if any. Tenant has examined said premises, acknowledges receipt of the list, and accepts the Premises in clean, habitable, and good working condition under O.C.G.A. § 44-7-33.

### 7. EXCLUSIVE RESIDENTIAL USE & OCCUPANCY LIMITS

The Premises shall be occupied strictly and solely as a private, single-family residential dwelling by Tenant and named authorized occupants only. Commercial operation, day-care, short-term subletting, or vacation accommodation (including Airbnb or VRBO) is strictly prohibited. Guests remaining more than fourteen (14) consecutive days require advance written authorization.

### 8. UTILITIES & SERVICES RESPONSIBILITY

Tenant shall transfer all utilities into Tenant's name effective the Commencement Date and shall promptly pay all charges for electricity, gas, municipal water, sewer, sanitation/trash collection, telephone, internet, and cable directly to the respective service providers. Tenant shall maintain adequate utility service at all times to prevent damage to pipes or HVAC systems.

### 9. TENANT MAINTENANCE & CARE COVENANTS

Tenant shall maintain the Premises in a sanitary, neat, and undamaged condition. Tenant responsibilities include replacing HVAC air filters at least once every sixty (60) days, clearing plumbing drains of hair and foreign debris, testing and replacing smoke detector batteries, and keeping the grounds and private driveway free from clutter and discarded items.

### 10. LANDLORD REPAIRS & STATUTORY MAINTENANCE DUTY

Landlord shall keep the structural foundation, exterior roof, load-bearing walls, electrical infrastructure, plumbing mains, and central heating and cooling equipment in good repair pursuant to O.C.G.A. § 44-7-13, except where damage arises from the negligence or willful act of Tenant or Tenant's guests.

### 11. LAWN CARE & GROUNDS MAINTENANCE

Tenant shall regularly mow, edge, weed, and irrigate the lawn and landscaped beds surrounding 7259 Brittany Way to adhere to community standards and county codes, keeping turf trimmed under six (6) inches in height.

### 12. PROHIBITION OF ALTERATIONS & IMPROVEMENTS

Tenant shall not make any structural alterations, paint interior walls, install satellite dishes, change lock hardware, or modify wiring or plumbing without prior written consent from Skelton Realty Group.

### 13. LANDLORD RIGHT OF INSPECTION & ENTRY

Landlord and its designated agents or contractors shall have the right to enter the Premises at reasonable hours upon twenty-four (24) hours advance notice for inspections, repairs, or pest control, and may enter immediately without notice in emergencies threatening life or real property.

### 14. ASSIGNMENT & SUBLETTING PROHIBITION

Tenant shall not assign this Lease, sublet any portion of the Premises, or license any interest herein to any person without the prior express written consent of Landlord and Skelton Realty Group.

### 15. QUIET ENJOYMENT & NUISANCE PREVENTION

Tenant covenants that Tenant and Tenant's guests shall not commit any waste, disturb neighbors, play unreasonably loud audio equipment, or create any public or private nuisance on or adjacent to the Premises.

### 16. COMPLIANCE WITH HOA COVENANTS & COUNTY ORDINANCES

Tenant shall comply with all covenants, conditions, and restrictions (CC&Rs) of the Hunters Ridge Sub U-5 and all applicable municipal, county, and state laws. Any fine levied for Tenant violations shall be reimbursed by Tenant immediately as additional rent.

### 17. SMOKE & CARBON MONOXIDE DETECTORS

Tenant acknowledges that the Premises is equipped with operational smoke detectors and carbon monoxide monitors. Tenant shall test devices monthly, replace batteries promptly, and immediately notify Skelton Realty Group in writing of any malfunction.

### 18. LOCK & KEY SECURITY POLICY

Tenant has been issued two (2) entry keys and one (1) garage door remote. Keys shall not be duplicated. If keys are lost, Tenant shall pay a rekeying and replacement administrative fee of $125.00.

### 19. STRICT PROHIBITION OF PETS (UNLESS AUTHORIZED)

No animals, birds, or reptiles shall be kept on the Premises without an executed Pet Addendum and receipt of non-refundable pet fee and monthly pet rent. Unauthorized pets shall incur an immediate $500.00 violation fine and subject the tenancy to eviction. Bona fide service or assistance animals are exempt upon lawful verification.

### 20. COMPREHENSIVE SMOKING & VAPING PROHIBITION

Smoking, vaping, burning incense, or aerosolizing tobacco, cannabis, or e-liquids is strictly prohibited anywhere inside the residential dwelling or garage. Violation shall incur a mandatory professional ozone deodorization and duct cleaning charge of not less than $750.00.

### 21. FIREPLACE OPERATION & SAFETY REGULATIONS

The fireplace shall be used solely with seasoned dry firewood or artificial logs. Tenant shall ensure the damper is open during operation and use a protective spark screen. Burning garbage or accelerants is forbidden.

### 22. MOTOR VEHICLE & PARKING REGULATIONS

Parking is permitted solely within the 2-car attached garage and paved private driveway. Parking on the grass, sidewalks, or non-designated curbs is prohibited. Inoperable, uninspected, or untagged vehicles may not be stored on the Premises and are subject to immediate towing at vehicle owner's expense.

### 23. PEST CONTROL RESPONSIBILITY

Landlord warrants that the Premises is delivered free of active vermin or pest infestation. Following thirty (30) days of initial occupancy, routine pest control for insects, ants, and roaches becomes Tenant's operational responsibility.

### 24. TENANT DEFAULT & ACCELERATION OF RENT

In the event Tenant fails to pay rent when due, vacates the Premises prior to term expiration, or commits any material covenant breach, Landlord may, after providing statutory notice, declare this Lease terminated, accelerate all remaining unpaid rent through the term end, and seek immediate possession under Georgia dispossessory law.

### 25. DISPOSSESSORY PROCEEDINGS & JUDICIAL EVICTION

If Tenant remains in default following statutory demand, Landlord may initiate dispossessory proceedings in the Magistrate Court of Douglas County pursuant to O.C.G.A. § 44-7-50 et seq. Tenant shall be liable for all court costs, service fees, and lawful statutory charges.

### 26. LANDLORD REMEDIES CUMULATIVE

All rights, powers, and remedies of Landlord contained in this Agreement or available under Georgia statutory or common law are cumulative, non-exclusive, and may be exercised concurrently or successively.

### 27. ABANDONMENT OF PERSONAL PROPERTY

If Tenant vacates, abandons, or is dispossessed from the Premises, any personal property left behind for more than ten (10) days shall be deemed conclusively abandoned and Landlord may discard or sell same without liability pursuant to Georgia law.

### 28. MANDATORY RENTER'S LIABILITY INSURANCE

Tenant shall procure and maintain throughout the entire lease term a comprehensive Renter's Liability Insurance policy with a minimum coverage limit of **$100,000.00** per occurrence. **Skelton Realty Group** and **2018-3 IH BORROWER LP** shall be named as Interested Parties on the certificate of insurance.

### 29. INDEMNIFICATION & HOLD HARMLESS

Tenant covenants to defend, indemnify, and hold harmless Landlord and Skelton Realty Group from any claims, liabilities, damages, or injuries occurring on the Premises caused by Tenant's actions, negligence, or breach of this Agreement.

### 30. CASUALTY, TOTAL DESTRUCTION & CONDEMNATION

If the dwelling is rendered wholly uninhabitable by fire, severe storm, or casualty through no fault of Tenant, either party may terminate this Lease upon written notice and rent shall be prorated to the date of casualty.

### 31. ENVIRONMENTAL & HAZARDOUS MATERIALS

Tenant shall not store, dispose of, or release any hazardous chemicals, flammable accelerants, toxic waste, or explosive substances on or around the Premises.

### 32. NOTICES & LEGAL COMMUNICATIONS

Any notice, demand, or legal communication required or permitted hereunder shall be in writing and shall be deemed duly delivered when delivered personally, sent by certified U.S. mail (postage prepaid, return receipt requested), or transmitted via the official Skelton Realty Group Resident Portal, addressed as follows:

**TO LANDLORD & PROPERTY MANAGER:**

**Skelton Realty Group**
Attn: Kenneth Hensley Jr / Leasing Administration
213 Bob Ln, Virginia Beach, VA 23454
Telephone: (800) 555-0198
Email: leasing@skeltonrealtygroup.com
*Authorized Managing Agent for 2018-3 IH BORROWER LP*

**TO TENANT:**

**Resident / Tenant**
7259 Brittany Way, Douglasville, GA 30134
Telephone: On File with Resident Portal
Email: Official Registered Resident Email
*Delivery via Personal Delivery, Certified Mail, or Resident Portal*

### 33. NON-WAIVER OF COVENANTS

Failure of Landlord to insist upon strict performance of any covenant herein shall not constitute a waiver or relinquishment of future enforcement.

### 34. SEVERABILITY & JUDICIAL REFORMATION

If any term or provision of this Lease is declared invalid or unenforceable by a court of competent jurisdiction, the remaining terms shall remain unaffected and valid to the maximum extent permitted by law.

### 35. GOVERNING GEORGIA LAW & JURISDICTION

This Agreement shall be governed, interpreted, and construed in accordance with the laws of the State of Georgia. Exclusive venue for any judicial controversy shall be in the Magistrate or Superior Court of Douglas County, Georgia.

### 36. ATTORNEY'S FEES & COLLECTION EXPENSES

If Landlord employs an attorney to collect past-due rent or enforce any covenant herein, Tenant shall pay Landlord's reasonable attorney's fees (not less than fifteen percent (15%) of the amount collected) and all court litigation costs under O.C.G.A. § 13-1-11.

### 37. LEAD-BASED PAINT DISCLOSURE (HOUSING BUILT PRIOR TO 1978)

According to official public tax records, the dwelling situated at 7259 Brittany Way was constructed in **2002**. Pursuant to 42 U.S.C. 4852d, residential housing built in or after 1978 is exempt from lead-based paint disclosure requirements.

### 38. PROPERTY MANAGER IDENTIFICATION UNDER O.C.G.A. § 44-7-3

Pursuant to O.C.G.A. § 44-7-3, Landlord hereby identifies **Skelton Realty Group**, 213 Bob Ln, Virginia Beach, VA 23454, (800) 555-0198, as the managing broker authorized to manage the Premises, receive rent, and accept legal process on behalf of the Owner **2018-3 IH BORROWER LP**.

### 39. MILITARY PERSONNEL LEASE TERMINATION RIGHTS

Pursuant to O.C.G.A. § 44-7-22 and the Servicemembers Civil Relief Act (50 U.S.C. § 3955), active military members may terminate this Lease early upon receiving permanent change of station (PCS) orders or deployment orders exceeding ninety (90) days upon thirty (30) days written notice.

### 40. FAIR HOUSING COVENANTS

Skelton Realty Group conducts all leasing, resident selection, and management activities in strict adherence to the Federal Fair Housing Act and Georgia Fair Housing Law without discrimination.

### 41. ENTIRE AGREEMENT & INTEGRATION CLAUSE

This Agreement represents the entire integrated contract between Landlord and Tenant. No oral representations shall be binding unless executed in writing by both parties.

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*IN WITNESS WHEREOF, the parties hereto have executed this Residential Lease Agreement under seal on the date and year set forth below, acknowledging full receipt of an executed copy hereof.*

**LANDLORD / MANAGING AGENT:**

Skelton Realty Group, as Agent for 2018-3 IH BORROWER LP

By: Kenneth Hensley Jr, Authorized Leasing Officer [SEAL]
Date: _____

**TENANT(S):**

Primary Resident & Authorized Co-Signers

Signature of Resident [SEAL]
Date: _____

Signature of Co-Tenant / Guarantor [SEAL]
Date: _____